

25VECV03005 25VECV03005

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-24

Motion: PLAINTIFF'S MOTION FOR ORDER COMPELLING INITIAL RESPONSES TO FORM INTERROGATORIES, SET ONE, AS TO DEFENDANT JOSEPH KEYSHAWN JOHNSON; REQUEST FOR MONETARY SANCTIONS

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Case Number: 25VECV03005 Hearing Date: August 24, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

GLASS

RESIDENTIAL GROUP, INC., a California Corporation,

Plaintiff,

vs.

JOSEPH KEYSHAWN JOHNSON also known as

KEYSHAWN JOHNSON, an individual; KJMKLV DEVELOPMENT, LLC; and DOES 1-25,

Defendants.

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CASE NO: 25VECV03005

[R/T Case No. 25VECV02198]

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
FOR ORDER COMPELLING INITIAL RESPONSES TO FORM INTERROGATORIES, SET ONE, AS
TO DEFENDANT JOSEPH KEYSHAWN JOHNSON; REQUEST FOR MONETARY SANCTIONS

Dept. U

8:30 a.m.

August 24, 2026

I.

BACKGROUND

This case arises from a
breach of written contract between Plaintiff Glass Residential Group, Inc.
("Plaintiff") and Defendants Joseph Keyshawn Johnson ("Johnson") and KJMKLV
Development, LLC ("KJMKLV") (collectively, "Defendants").

On May 29, 2025,
Plaintiff filed a complaint against Defendants, alleging causes of action for:

(1) Breach of Contract; (2) Open Book Account; (3) Quantum Meruit; (4) Common Count; (5) Foreclosure of Mechanics Lien; and (6) Violation of Civil Code § 1719.

On August 14, 2025, Case Nos. 25VECV02198 and 25VEVC03005 were related; Case No. 25VECV02198 was designated as the lead case.

On August 21, 2025, Plaintiff filed its first amended complaint ("FAC").

On September 19, 2025, Plaintiff in Case No. 25VECV02198 dismissed that action, with prejudice.

On October 1, 2025, Plaintiff served Johnson with Form Interrogatories, Set One ("FROGs"). (Davidson Decl., ¶ 3, Ex. 1.)

As of May 19, 2026, Johnson had not served his initial responses. (Davidson Decl., ¶¶ 14-15.)

On May 19, 2026, Plaintiff filed the instant motion to compel Johnson's initial responses to the FROGs. Plaintiff also requests monetary sanctions in the amount of \$3,210.00..

As of August 18, 2026, no opposition has been filed.

II.

LEGAL STANDARD

Where a party fails to serve timely responses to discovery requests, the court may make an order compelling responses. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.) A party that fails to serve timely responses waives any objections to the request, including ones based on privilege or the protection of attorney work product. (Code Civ. Proc., § 2030.290, subd. (a).) Unlike a

motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit and the propounding party has no meet and confer obligations. (Sinaiko Healthcare Consulting, Inc., supra, 148 Cal.App.4th at p. 404.)

III.

DISCUSSION

Plaintiff moves to compel Johnson's responses to the FROGs. (Mot., p. 1.) On October

1, 2025, Plaintiff served the FROGs on Johnson. (Davidson Decl., ¶ 3, Ex. 1.) As of May 19, 2026, Johnson had not served his

initial responses on Plaintiff. (Davidson Decl., ¶¶ 14-15.)

As the time for Johnson to respond to the FROGs has now passed, Plaintiff is entitled to an order compelling Johnson's response to the FROGs, without stating objections. (See Code Civ. Proc., § 2030.290.)

Additionally, Plaintiff seeks monetary sanctions in the amount of \$3,210.00, consisting of 0.8 hours for meet-and-confer correspondence, 4.5 hours preparing the instant motion, and an anticipated 1.5 hours reviewing the opposition and preparing a reply, and 0.5 hours appearing at the hearing, at an hourly rate of \$450, plus a \$60.00 filing fee. (Davidson Decl., ¶ 12.)

The Court is statutorily required to impose a monetary sanction against a party who unsuccessfully opposes a motion to compel initial responses to a request for production of documents and/or interrogatories, unless the Court finds circumstances would make the imposition a sanction unjust. (Code Civ. Proc., § 2030.290, subd. (c).)

The Court finds the requested hours excessive. No opposition was filed, and the Court finds 4.5 hours excessive for a straightforward and unopposed motion to compel initial responses. The Court therefore awards sanctions against Johnson in the reduced amount of \$1,185.00, consisting of 2 hours to prepare the instant motion and 0.5 hours to appear at the hearing at an hourly rate of \$450 and \$60 for the filing fee.

IV.

CONCLUSION

Plaintiff Glass Residential Group, Inc.'s motion to compel Defendant Joseph Keyshawn Johnson's initial responses to Plaintiff's form interrogatories, set one, is GRANTED.

Plaintiff Glass Residential Group, Inc. is AWARDED sanctions against Defendant Joseph Keyshawn Johnson in the total amount of \$1,185.00.

Plaintiff
is ORDERED to give notice.

DATED: August 24, 2026

Lee S. Arian

Judge of the
Superior Court